

Tulamani Patel v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 August 2021 · Writ-C No. 16452 of 2021 · **Second writ dismissed as same cause of action.**

HEADNOTE

The petitioner sought mandamus directing the distribution licensee to decide representations dated 26 March 2021 and 7 July 2021 on a disputed electricity bill. In Writ-C No. 386 of 2020 the Court had already declined to quash the recovery citation and relegated the billing-correctness dispute to clause 6.5 of the U.P. Electricity Supply Code, 2005. Treating the present petition as a second writ on the same cause of action, the Division Bench dismissed it.

FACTUAL SUMMARY

Tulamani Patel had earlier filed Writ-C No. 386 of 2020 seeking to quash a recovery citation dated 9 December 2019, disputing the correctness of his electricity bill. That petition was disposed of by relegating him to clause 6.5 of the U.P. Electricity Supply Code, 2005, with a two-week window to approach the authority and short-term protection against coercive recovery. He thereafter made representations dated 26 March 2021 and 7 July 2021. In this writ he sought mandamus directing respondent no. 2 to decide those representations within a court-fixed period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

second writ after clause 6.5 relegation

HOLDING

Where a consumer disputing bill correctness has already been relegated to the statutory remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005, a later writ seeking mandamus to decide the resulting representations is a second writ on the same cause of action and is dismissed. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ

The Court treated mandamus to decide the 26 March 2021 and 7 July 2021 representations as a second writ on the same billing dispute that Writ-C No. 386 of 2020 had already sent to clause 6.5, and dismissed it. ¶ 1

clause-6.5-statutory-remedy-disputed-bill

The quoted earlier order, which this Bench applied, had held that a dispute as to correctness of the bill is to be pursued under clause 6.5 and is not to be entertained in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE PENDING 6.5 REPRESENTATIONS

The Court dismissed the second writ without examining the bill or directing decision of the representations dated 26 March 2021 and 7 July 2021. ¶ 1